

25STCV19085 25STCV19085

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-14

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Case Number: 25STCV19085 Hearing Date: July 14, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 14, 2026

Case Name: Bailey, et al. v. Edward J.

Jenkins, Trustee, et al.

Case

No.: 25STCV19085

Matter: Petition to Approve Compromise of Action on Behalf
of Minors

Moving

Party: Petitioner Marcus Bailey

Responding Party: None

Tentative

Ruling: The Petition to Approve Compromise of Action on
behalf of a minor is denied.

Plaintiffs

have settled their action against Defendants Edward J. Jenkins, Trustee of The
Survivor's Trust of The Jenkins Family Revocable Trust Dated March 7, 2012,
Edward J. Jenkins, Trustee of The Exclusion Trust Of The Jenkins Family

Revocable Trust Dated March 7, 2012, Edward J. Jenkins, Trustee Of The Nonexempt Marital Trust Oof The Jenkins Family Revocable Trust Dated March 7, 2012, And RST & Associates for \$115,000.

Plaintiff/Petitioner

Marcus Bailey now seeks approval of a compromise of the claim on behalf of the minor Plaintiff Kross Bailey.

Discussion

Court approval is required for all settlements of a minor's claim. (Prob. Code, §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.) California Rules of Court, rule 7.950 provides that a petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise." The Petition must be filed on Judicial Council Form MC-350 and must be completed.

Of

the \$115,000 in settlement funds, Minor Claimant will only be entitled to \$2,500. The Court questions how Plaintiffs determined the Minor Claimant's damages. Further, Petitioner proposes that funds be paid or delivered to the parent/guardian as a litem for the minor, without bond, pursuant to Probate Code sections 3401-3402. (MC-051.) (Prob. Code, §§ 3611, 3401-02.)

Conclusion

Petitioner Marcus Bailey's petition for minors' compromise is denied.